



\$b£ ©a^tte of Pakistan

EXTRAORDINARY

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GOVERNMENT OF PAKISTAN

MINISTRY OF LAW

ORDINANCE No. VIII OF 1961

Rawalpindi, the 2nd March, 1961

' AN

ORDINANCE

to give effect to certain recommendations of the Commission on Marriage and Family Laws

WHEREAS it, is expedient to give effect to certain recommendations of the Commission on Marriage and Family Laws ;

' Now THEREFORE, in " pursuance of the ■ Proclamation of the seventh "day of October, 1958, and in exercise of all powers enabling him in that -■'behalf, the President is pleased to make and 'promulgate the following Ordinance:—

1; Short title, extent, application and commencement—(1) This Ordinance may be called the Muslim Family Laws Ordinance, 1961.

(2) It extends to the whole of Pakistan, and applies to all Muslim
• r citizens of Pakistan, wherever they may be.

(3) It shall come into force on such date as the Central Government may, by notification in the official Gazette, appoint in this behalf.

2. Definitions.—In this Ordinance", unless there is anything repugnant in the subject or context,—

' (a) " Arbitration Council " means a body consisting of the Chair" man of the Union Council and a representative of each of the parties to a matter dealt with in this Ordinance;

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fb) "Chairman" means the Chairman of the Union person appointed by the Central Government to perform the functions of a Chairman under, this Ordinance ;

(C) "prescribed" means prescribed by rules made under

(d) "Union Council" means, the Union Council or Union Committee, constituted under the Basic Order, 1959 (P. O. No. 18 of 1959), and having jurisdiction over the area concerned ;

(e) "Ward" means a ward within a Union or Town as defined in the aforesaid Order.

3. Ordinance to override other laws, etc.—(d) The provisions of this Ordinance shall have effect notwithstanding any law, custom or usage and the registration of Muslim marriages shall take place only in accordance with those provisions.

(2) For the removal of doubt, it is hereby declared that the provisions of the Arbitration Act, 1940 (X of 1940), the Code of Civil Procedure, 1908 (Act V of 1908), and any other law regulating the procedure of courts, shall not apply to any Arbitration Council.

4. Succession.—In the event of the death of any son or daughter of the *propositus* before the opening of succession, the children of such son or daughter, if any, living at the time the succession opens, shall per stirpes receive a share equivalent to the share which such son or daughter, as the case may be, would have received if alive.

5. Registration of marriages.—(1) Every marriage solemnized, under Muslim Law shall be registered in accordance with the provisions of this Ordinance.

(2) For the purpose of registration of marriages under, this Ordinance, the Union Council shall grant licences, to one or more persons, to be called Nikah Registrars, but in no case shall, more than one Nikah Registrar be licensed for any one Ward.

(3) Every marriage not solemnized by the Nikah Registrar shall, for the purpose of registration under this Ordinance, be reported to him by the person who has solemnized such marriage.

(4) Whoever contravenes the provisions of sub-section (3) shall be punishable with simple imprisonment for a term which may extend to three months, or with fine which may extend to one thousand rupees, or with both.

(5) The registers to be maintained by the Nikah Registrars; the records to be preserved by Union Councils, the manner in which marriages shall be registered and copies of nikah namas shall be supplied to the parties, and the fees to be charged therefor, shall be such as may be prescribed.

(6) Any person may, on payment of the prescribed fee, if any, inspect at the office of the Union Council the record preserved under section (5), or obtain a copy of any entry therein.

polygamy.-(1) No man, during the subsistence of an existing marriage, shall except with the previous permission in writing of the Arbitration Council, contract another marriage, nor shall any such marriage be registered under this Ordinance.

Z91 An application for permission under sub-section (1), shall be submitted to the Chairman in the prescribed manner, together with the prescribed fee, shall state the reasons for the proposed marriage, and whether the consent of the existing wife or wives has been obtained thereto.

(3) On receipt of the application under sub-section (2), the Chairman shall ask the applicant and his existing wife or wives each to nominate a representative, and the Arbitration Council so constituted, may, if satisfied that the proposed marriage is necessary and just, grant, subject to such conditions, if any, as may be deemed fit, the permission applied for.

(4) In deciding the application the Arbitration Council shall record its reasons for the decision, and any party may, in the prescribed manner, within the prescribed period, and on payment of the prescribed fee, before an application for revision, in the case of West Pakistan, to the Collector and, in the case of East Pakistan, to the Sub-Divisional Officer concerned and his decision shall be final and shall not be called in question in any court.

(5) Any man who contracts another marriage without the permission of the Arbitration Council shall—

- (a) pay immediately the entire amount of the dower, whether prompt or deferred, due to the existing wife or wives, which amount, if not so paid, shall be recoverable as arrears of land revenue; and
- (b) on conviction upon complaint be punishable with simple imprisonment which may extend to one year, or with fine which may extend to five thousand rupees, or with both.

7. Talaq.— (1) Any man who wishes to divorce his wife shall, as soon as may be after the pronouncement of *talaq* in any form whatsoever, give the Chairman notice in writing of his having done so. and shall supply a copy thereof to the wife.

(2) Whoever contravenes the provisions of sub-section (1) shall be punishable with simple imprisonment for a term which may extend to one year or with fine which may extend to five-thousand rupees or with both.

(3) Save as provided in sub-section (5), a *talaq* unless revoked earlier, expressly or otherwise, shall not be effective until the expiration of ninety days from the day on which notice under sub-section (1) is delivered to the Chairman.

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(4) Within thirty days of the receipt of notice under sub-section (1), the Chairman shall, constitute an Arbitration Council for the purpose, of bringing about a reconciliation between the parties, and the Arbitration Council shall take all-steps necessary to bring about such reconciliation.

(5) If the wife be pregnant at the time Uilq j shall not be effective until the period mentioned i the pregnancy, wnichever be later, ends.

Nothing shall o ecti011 from re-marrying the san terminated
w DVtalag effective under marriage wiU1 a third person, unless husband,
nation is for the SS - >> effective. such termi-

marriage otherwise than by talag.—Where the right
to divorce duly delegated to the wife and she SSSxa
that right, or where any ie to a marriage
otherwise than by taQ⁵ the provisions of Section 1 shall,
the man wisa, inis and so w as applicable, apply.

9. Maintenance.—ⁱⁱ If any husband fails to mamtam his wife ade
quately, or where there are m than one, tails to maintain them
equitably, the wife, or an of w the may in addition to seeking
a available apply to the chairman who shall con-
any other legal remie yci to determine the matter, and the Arbitra-
stitute an may iss f rtiacate specifying the amount which shall be
paid as m itenance

(2) A husband or wnë may i the proscribed manner, within the
prescribed period, and on paym en of the prescribed fee> prefer an appli-
cation for revision of the certA c te in the case of West Pakistan, to the
Co in le se of East Pakistan, to the Sub-Divisional Officer
coiS^Shis^dec^ion shall be final and shall not be caUed in ques-
tion in any court.

(3) Any amount payable under sub-section (1) or (2), if not paid in
due time, shall be recoverable as arrears of land revenue.

10. Dower.—Where no details about the mode of payment of dower
-are specified in the nikah nama, or the jnarriage contract, the entire
amount of the dower shall be presumed to be payable on demand.

11. Power to make rules.—(1) The Provincial Government may make
rules to carry into effect the purposes of this Ordinance.

(2) In making rules under this section, the Provincial Government
may provide that a breach of an ri, the Provincial Government
simple imprisonment which m=, ot rules shall punishable with
may extend to two hundred Bri mAY extend to one month, or with fine which
wo nunored rupees, or with both.

(3) Rules made under t
Gazette, and shall hereunnn^ A1 o11 shaU be published in the official
hereupon have effect as if enacted in this Ordinance.

Amendment of CHIL Marriage Restraint Act, 1929 (XIX of 1929)
In the Child Marriage Restraint Act, 1929 (XIX of 1929),—

(1) in section 2,—

(a) in clause (a), for t the WOrd “fourteen” the word “sixteen
shall be substituted;

(b) in clause (c), the word “and” shall be omitted; and

(c) in clause (d.), for the full stop at the end a comma shall be substituted, and thereafter the following new clause (e) shall be added, namely :—

“ (e) “ Union Council ” means the Union Council or the Town or Union Committee constituted under the Basic Democracies Order, 1959 (P.O. No. 18 of 1959), within whose jurisdiction a child marriage is or is about to be solemnizedⁿ;

(2) section 3 shall be omitted ;

(3) in section 4, for the words “ twenty-one ” the word “ eighteen ” shall be substituted ;

(4) in section 9, after the words “under this Act ”, the words “except on a complaint made by the Union Council, or if there is no Union Council in the area, by such authority as the Provincial Government may in this behalf prescribe, and such cognizance shall in no case be taken ” shall be inserted ; and

(5) section 11 shall be omitted.

13. Amendment of the Dissolution of Muslim Marriages Act, 1939 (VIII of 1939).—In the Dissolution of Muslim Marriages Act, 1939 (VIII of 1939), in section 2,—

(a) after clause (ii), the following new clause (iia) shall be inserted namely :—

“ (iia) that the husband has taken an additional wife in contravention of the provisions of the Muslim Family Laws Ordinance, 1961 ; ” ; and

(b) in clause (vii), for the word “ fifteen ” the word “ sixteen ” shall be substituted.

MOHAMMAD AYUB KHAN, H. Pk., H. J.,
FIELD MARSHAL,
President.

Rawalpindi, the 2nd March, 1961.

N. A. FARUQUI,
Cabinet Secretary.